

Attachment E

From: Ryan McBride [REDACTED]@UtahCounty.gov>
Sent: Wednesday, January 21, 2026 1:16 PM
To: Chad Grunander [REDACTED]@UtahCounty.gov>
Subject: FW: Charlie Kirk Press conference

From: [REDACTED]@washco.utah.gov>
Sent: Wednesday, September 17, 2025 1:34 PM
To: Ryan McBride [REDACTED]@UtahCounty.gov>
Subject: RE: Charlie Kirk Press conference

Thanks – I'll make sure the Sheriff has a copy.

From: Ryan McBride [REDACTED]@UtahCounty.gov>
Sent: Wednesday, September 17, 2025 1:33 PM
To: [REDACTED]@washco.utah.gov>; [REDACTED]@washeriff.net
Subject: FW: Charlie Kirk Press conference

I'll send a copy of the information shortly.

From: Ryan McBride
Sent: Wednesday, September 17, 2025 1:20 PM
To: [REDACTED]@washeriff.net
Cc: Jeff Gray [REDACTED]@utahcounty.gov>; Christopher Ballard [REDACTED]@utahcounty.gov>; Chad Grunander [REDACTED]@UtahCounty.gov>
Subject: Charlie Kirk Press conference

Sheriff,

I am one of the prosecuting attorneys assigned to the Charlie Kirk aggravated murder case. As I was driving in my car today I heard that you were holding a press conference about the case. I write to inform you of the limitations on media coverage of open criminal cases. I have shared the attached letter with the Governor, the FBI, and DOJ, Utah's Department of Public Safety Commissioner and all agencies in Utah County who had involvement in the case.

Please be aware that improper public statements can result in sanctions against the State in the case, including even dismissal of the criminal charges, exclusion of evidence, delay, change of venue, and others. In such an important case, we want to certain we do not have those sanctions in this case. Not only could it result in a miscarriage of justice, it could look very bad for our state and our efforts.

With this said, please review the attached letter carefully, as well as the guidance from the ethical rules below. DO NOT MENTION THAT ROBINSON INVOKED HIS FIFTH AMENDMENT RIGHT OR MAKE COMMENTS ON HIS CHARACTER OR YOUR BELIEF OF HIS GUILT. Also, your statements about the facts of the case should be limited to those included in the booking probable cause statement and the probable cause statement included with the charging document.

The comment to Rule 3.6 of the rules of professional responsibility reads as follows:

[5] There are certain subjects that are more likely than not to have a material prejudicial effect on a proceeding, particularly when they refer to a criminal matter or any other proceeding that could result in incarceration. These subjects relate to:

- (i) the character, credibility, reputation or criminal record of a suspect in a criminal investigation or witness, or the identity of a witness, or the expected testimony of a party or witness;
- (ii) in a criminal case or proceeding that could result in incarceration, the possibility of a plea of guilty to the offense or the existence or contents of any confession, admission or statement given by a defendant or suspect ***or that person's refusal or failure to make a statement***; (emphasis is mine)
- (iii) the performance or results of any examination or test or the refusal or failure of a person to submit to an examination or test, or the identity or nature of physical evidence expected to be presented;
- (iv) any opinion as to the guilt or innocence of a defendant or suspect in a criminal case or proceeding that could result in incarceration; or
- (v) information that the lawyer knows or reasonably should know is likely to be inadmissible as evidence in a trial and that would, if disclosed, create a substantial risk of prejudicing an impartial trial.

The rule in its entirety is available here: <https://legacy.utcourts.gov/rules/view.php?type=ucja&rule=13-3.6>

Remember that information contained in the public record is fair game. You are on firm ground when rely on the booking probable cause statement and, in the future, on the probable cause statement that will be included in the Criminal Information. With this in mind, I am asking that your team to carefully consider the parameters outlined in the rule above and my attached letter.

I know the public has an extraordinary interest in this case and you have the duty to ensure Utahns know they are safe from the shooter. You have every right and expectation to speak to our state about this case.

Thank you.



Ryan McBride
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